

Present:
Mr. Justice S M Kuddus Zaman
And
Mr. Justice Md. Ali Reza
Criminal Misc Case No.7406 of 2024

Md. Shohel
.... Accused-petitioner
-Versus-
The State
.... Opposite Party
Mr. Obayed Ahmed, Advocate
.... For the petitioner
Mr. Sujit Chatterjee, DAG with
Ms. Farhana Afroze Runa, A. A. G with
Mr. Abdul Aziz Masud, A. A. G. with
Md. Shamim Khan, A.A.G
... For the State

Heard and Judgment on 13.02.2024.

S M Kuddus Zaman, J:

On an application under Section 561A of the Code of Criminal Procedure this Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 12.12.2023 passed by the learned Sessions Judge in Vacation, Cumilla in Criminal Revision No.787 of 2023 arising out of C.R. Case No.661 of 2023 (Kotwali) under sections 379/109 of the Penal Code, 1860 disallowing the prayer for jimmia of the alleged seized Noha Square Car bearing Registration No.Dhaka Metro-Cha-12-0520 in favour of the applicant petitioner, now pending in the court of learned Sessions Judge in Vacation, Cumilla should not be quashed and/or pass such other or further order or orders as to this court may seem fit and proper.

Facts in short are that the petitioner filed an application to the learned Senior Judicial Magistrate, Cognizance Court No.1, Cumilla for getting zimma (custody) of the seized Noha Square Car being seized Noha Square Car bearing Registration No.Dhaka Metro-Cha-12-0520, but the learned Senior Judicial Magistrate, Cumilla rejected the said petition by order dated 21.06.2023.

Being aggrieved by above order the petitioner preferred Criminal Revision Case No.787 of 2023 to the learned r Sessions Judge in Vacation, Cumilla who rejected above revision vide impugned order dated 12.12.2023.

Challenging the legality and propriety of above order the petitioner has moved to this court and obtained this Rule.

Mr. Obayed Ahmed, the learned Advocate for the accused-petitioner submits that the petitioner is the rightful owner of above Noha Square Car. Above Noha Square Car is kept in the open sky in front of the Police Station which is causing serious damage to above valuable vehicle. The petitioner wants to get jimma of above Noha Square Car and he will ensure better maintenance of the same and produce the Noha Square Car before the Court below whenever he is asked to do so. But the learned Sessions Judge in Vacation, Cumilla failed to appreciate above materials on record and most illegally rejected above revisional application which is not tenable in law.

On the other hand Mr. Sujit Chatterjee, the learned Deputy Attorney General for the state opposes this petition of the petitioner for getting jimma seized Noha Square Car.

We have considered the submissions of the learned Advocates for the respective parties and carefully examined all materials on record.

It turns out from the FIR and the Seizure list that one Noha Square Car recovered from the occurrence place. It further turns out from the police report that the petitioner is the owner of the seized Noha Square Car.

The ultimate fate of above seized Noha Square Car will be determined at trail. But in the meantime above Noha Square Car which is a valuable asset

requires proper maintenance. If the Noha Square Car is given in the jimma of the petitioner who is the rightful owner of the same then the proper maintenance of the vehicle will be ensured. The petitioner shall produce above Noha Square Car to the trial court whenever he is directed to do so.

In above view of the materials on record we hold that the learned Sessions Judge in Vacation, Cumilla committed an error in rejecting the application of the petitioner seeking jimma of above Noha Square Car which is not tenable in law.

In the result, the Rule is made absolute.

The impugned judgment and order dated 12.12.2023 passed by the learned Sessions Judge in Vacation, Cumilla in Criminal Revision No.787 of 2023 arising out of C.R. Case No.661 of 2023 (Kotwali) is set aside.

The learned Sessions Judge, Cumilla is directed to place above Noha Square Car in the jimma of the petitioner with condition that the petitioner shall produce the Noha Square Car to the trial court whenever he is directed to do so.

Communicate this judgment and order to the Court concerned at once.

Md. Ali Reza, J:

I agree.